

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**[PROPOSED] ORDER ON
DEFENDANT'S MOTION TO DECLARE
PLAINTIFF A VEXATIOUS LITIGANT**

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Date: August 26, 2026

Time: 9:00 A.M.

Dept: 302

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 The motion of Defendant CSAA INSURANCE EXCHANGE to declare Plaintiff
2 FRANCISCUS DYLAN ROSARIO, a vexatious litigant and to require Plaintiff to furnish security
3 came on regularly for hearing on August 26, 2026, in Department 302 of the above-entitled Court.

4 The Court, having considered the moving papers, the supporting declaration and exhibits,
5 any opposition filed, and the arguments of counsel, and good cause appearing, hereby **ORDERS**:

- 6 1. Defendant's Motion is Granted.
- 7 2. Plaintiff FRANCISCUS DYLAN ROSARIO is declared a vexatious litigant pursuant to
8 Code of Civil Procedure section 391(b).
- 9 3. Plaintiff is ordered to furnish security in the amount of \$_____ pursuant to Code of
10 Civil Procedure section 391.3, in all pending actions in any Court in the State of California.
- 11 4. Plaintiff shall post said security within 15 days of service of this Order, in any pending
12 action; and will post said security concurrently with any new actions he files in any Court in
13 the State of California.
- 14 5. Finally, any filings Plaintiff submits to the Court are subject to Court screening and approval,
15 prior to being served on any party to any Action Plaintiff initiates.

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17 **IT IS SO ORDERED.**

18 **IT IS FURTHER ORDERED** as follows: _____
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23 Dated: _____

24 Judge of the Superior Court
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 21, 2026, I
6 served the following document: **[PROPOSED] ORDER ON DEFENDANT'S
7 MOTION TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**

8	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	X BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on July 21, 2026.

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21 *Serena Blithe*
22 Serena Blithe
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